

SENATE BILL 385

By Taylor

AN ACT to amend Tennessee Code Annotated, Title 71,
relative to public assistance.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 71-5-314, is amended by adding the following new subsection:

(k) No less than once per month, the department shall utilize electronic benefit card data to identify any recipients who have used food assistance benefits to make purchases exclusively outside of this state for a period of ninety (90) consecutive days or more. Within thirty (30) days of identification, the department shall send written notice to each recipient so identified and request that the recipient provide proof of residency in this state in order to continue to receive food assistance. If, within thirty (30) days of the date of receipt of notice from the department, a recipient is unable to provide proof of residency in this state or fails to respond to such notice, then the department shall remove the recipient from enrollment in the food stamp program. Within fifteen (15) days of removing a recipient from enrollment in the food stamp program pursuant to this subsection (k), the department shall send notification of and reasons for a recipient's removal to the United States attorney for the federal district where the former recipient is believed to reside.

SECTION 2. Tennessee Code Annotated, Section 71-5-317, is amended by adding the following new subsection:

(c) The department shall not provide an exception under 7 U.S.C. § 2015(o)(3)(F) from work requirements unless the department has determined that the individual is a homeless individual. For purposes of this subsection (c), an individual

must not be considered a homeless individual unless the department is able to verify that:

(1) The individual has resided in a public shelter for a period of at least thirty (30) days, based upon notarized documentation from the public shelter of such fact; or

(2) A public shelter is not available and notarized documentation from the applicable public housing authority attests that such individual is on a waiting list to be admitted to an available shelter.

SECTION 3. This act takes effect July 1, 2025, the public welfare requiring it.